

PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY
AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT
ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The Petition is GRANTED. Michael Torr is appointed as probate referee. The matter is set for a Status Hearing Re: Final Distribution on August 11, 2027, at 8:30 a.m. in Dept. B. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

PLAINTIFF’S MOTION TO COMPEL RESPONSES TO WRITTEN DISCOVERY AND TO
COMPEL DEPOSITION

TENTATIVE RULING: The Motion is GRANTED. Kimberton Wines, LLC (Kimberton) is ordered to produce code-compliant responses, without objection save those based on attorney-client privilege or attorney work product, within 20 calendar days of Notice of Entry of the instant order. Kimberton is further ordered to, within 20 calendar days of Notice of Entry of order, designate and set a date, within 45 days of the Notice of Entry of Order, and time for deposition pursuant to the subject deposition notice. Plaintiff Meteor Growers, LLC (Meteor) is directed to serve and file a Notice of Entry of the instant order.

Plaintiff Meteor Growers, LLC (Meteor) moves, pursuant to California Rule of Court, rule 3.1348, and Code of Civil Procedure sections 2025.450, 2030.290, and 2033.280, for an order: (1) Compelling Defendant Kimberton Wines, LLC (Kimberton) to serve verified responses to written discovery; (2) Compelling Defendant Kimberton Wines, LLC to designate and produce its person most qualified for deposition; and (3) Deeming admitted the truth of each matter specified in Plaintiff’s RFAs.

A. FACTUAL FINDINGS

Based on the evidence submitted in support of the motion, the Court finds as follows.

1. On March 23, 2026, Meteor served Kimberton with a Notice of Taking Deposition of Person Most Qualified, setting deposition for April 30, 2026. (See Declaration of John A. Heffner at ¶ 3 and Exh. C.)
2. On May 11, 2026, Meteor served Kimberton with Form Interrogatories. And Requests for Admissions. (See *id.* at ¶¶ 6 and 7 and Exhs. A and B.)

3. Each of the subject discovery requests was served on Kimberton care of William Deem, Managing Member. (See *id.* at Exhs. A-C.) The Court takes judicial notice of the fact that on March 3, 2026, former counsel for Kimberton Ethan A. Glaubiger filed a Substitution of Counsel identifying Mr. Deem as Kimberton’s contact person for the litigation.²

4. The noticed deposition, and the time for Kimberton to respond to the subject discovery has passed. (Cal. Code Civ. Proc., §§ 2030.260, and 2033.250.)

5. No person appeared for the noticed deposition, and as of the filing of the present motion, Kimberton has not responded in any manner to the subject discovery and has not requested any extension of the deadline for responding. (See Heffner Decl. at ¶ 12.)

Kimberton appears to concede the foregoing by failing to file anything in opposition to the motion.

B. LEGAL ANALYSIS

1. Interrogatories

By operation of law, Kimberton has, by failing to timely serve interrogatory responses, waived the right to exercise the option to produce writings pursuant to Code of Civil Procedure section 2030.230, and has waived any objection to the interrogatories. (See Code Civ. Proc., § 2030.290, subd. (a).) Meteor is entitled to an order compelling Kimberton to serve code compliant responses, without objection, to the subject interrogatories. (See *id.* at subd. (b).)

“The court shall impose a monetary sanction against any party...who unsuccessfully...opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed....” (Rules of Court, rule 3.1348, subd. (a).)

No grounds appear to justify Plaintiff’s failure to respond to the subject discovery, and no other circumstances make the imposition of the sanction unjust.

² An LLC is not permitted to *appear* by a company officer rather than an attorney. (See *Merco Constr. Engineers, Inc. v. Muni. Ct.* (1978) 21 Cal.3d 724, 727.) “[A] corporation, unlike a natural person, cannot represent itself before courts of record in *propria persona*, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record.” (*CLD Constr., Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145 (*CLD Constr.*)). However, “[t]he rule requiring representation by an attorney does not deprive a corporation of this capacity to be a party to a lawsuit.” (*Id.* at 1150.) The Court understands this latter holding in *CLD Constr.* to mean that Kimberton may not escape its obligations under the Civil Discovery Act by failing to retain counsel.

2. Requests for Admission

Where “a party to whom requests for admission are directed fails to serve a timely response...[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction...” (Code Civ. Proc., § 2033.280, subd. (b).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (*Id.* at subd. (c).)

Because Kimberton failed to serve a timely response to the Requests for Admissions, either prior to the filing of the motion or before hearing on the motion, Meteor is entitled to an order deeming genuine all documents identified in the requests and further deeming admitted all matters specified in the requests.

It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (*Id.* at subd. (c).)

3. PMQ Deposition

“If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (a).)

The Court finds that Kimberton failed to designate a party to appear and failed to appear at the subject deposition without having served a valid objection.

“If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Kimberton, by failing to oppose the instant motion, failed to establish any facts or present any evidence tending to show that it acted with substantial justification or demonstrate any other circumstances that would make the imposition of sanctions unjust.

4. Monetary Sanctions

The Court finds that both the hourly rate charged by Meteor's counsel, and the amount of time spent in preparing the motion are reasonable. The Court further finds that the hourly rate, while at the upper limit, is consistent with those typically charged in the community for similar work. The Court further finds that Meteor is entitled to recoup its filing fee for the motion and the costs incurred in retaining a court reporter for the noticed deposition.

Based on the foregoing, the request for monetary sanctions is GRANTED.

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Thomas Pollock et al v. Angel Melendez Pimentel et al

25CV000964

DEFENDANT FEDERAL INSURANCE COMPANY'S MOTION TO COMPEL
PLAINTIFF'S FURTHER RESPONSES TO REQUESTS FOR PRODUCTION AND
INTERROGATORIES

TENTATIVE RULING: The matter is CONTINUED to September 1, 2026, at 8:30 a.m. in Dept B to allow the parties to address the following items:

- 1) Federal shall submit a supplemental declaration to confirm the parties' agreement to extend the deadline for Federal to move to compel responses to each set of discovery requests at issue. The supplemental declaration shall be served and filed no later than August 25, 2026.
- 2) The parties are ordered to engage in additional meet and confer efforts in light of the discussion below. Federal shall file a supplemental declaration stating facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion was made. The supplemental declaration shall be served and filed no later than August 25, 2026. The parties are further directed to file, not later than August 25, 2026, either a Joint Supplemental Separate Statement, or respective Supplemental Separate Statements identifying, for the Court, which disputes have been resolved, and for each that remains in contention, the arguments for and against the motion to compel, in light of the parties' meet and confer efforts.
- 3) The parties are also encouraged to meet and confer regarding the appointment of a discovery referee pursuant to Code of Civil Procedure, section 638. Upon any agreement, the parties may submit a stipulation and proposed order.

A. PROCEDURAL MATTERS

Defendant Federal Insurance Company ("Federal") moves, pursuant to Code of Civil Procedure sections 2030.300 and 2031.310,³ to compel Plaintiffs' further responses, within 30 days, to Federal's Special Interrogatories (Set One) Nos. 9-12 and 14-16; Form Interrogatories (Set One) Nos. 9.2, 12.3, 12.4, 12.6, and 50.3; Requests for Production (Set One) Nos. 1-7, 9-15,

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.